SC-100 Plaintiff's Claim and ORDER to Go to Small Claims Court

Clerk stamps date here when form is filed.

Marin

Marin County Superior Court
3501 Civic Center Dr
San Rafael CA 94903

Fill in court name and street address:

Superior Court of California, County of

Jude v. acme auto

Court fills in case number when form is filed.

Case Number:

Case Name:

Notice to the person being sued:

- You are the defendant if your name is listed in ② on page 2 of this form or on form SC-100A. The person suing you is the plaintiff, listed in ① on page 2.
- You and the plaintiff must go to court on the trial date listed below. If you do not go to court, you may lose the case. If you lose, the court can order that your wages, money, or property be taken to pay this claim.
- Bring witnesses, receipts, and any evidence you need to prove your case.
- Read this form and all pages attached to understand the claim against you and to protect your rights.

Aviso al Demandado:

- Usted es el Demandado si su nombre figura en ② de la página 2 de este formulario, o en el formulario SC-100A. La persona que lo demanda es el Demandante, la que figura en ① de la página 2.
- Usted y el Demandante tienen que presentarse en la corte en la fecha del juicio indicada a continuación. Si no se presenta, puede perder el caso. Si pierde el caso, la corte podría ordenar que le quiten de su sueldo, dinero u otros bienes para pagar este reclamo.
- Lleve testigos, recibos y cualquier otra prueba que necesite para probar su caso.
- Lea este formulario y todas las páginas adjuntas para entender la demanda en su contra y para proteger sus derechos.

Order to Go to Court

The people in ① and ② must attend court: (Clerk fills out section below.)

Trial Date →

	Date	Time	Department	Name and address of court, if different from above
1.				
2.				
3.				

Date: _____ Clerk, by _____, Deputy

Instructions for the person suing:

- You are the plaintiff. The person you are suing is the defendant.
- **Before** you fill out this form, read form **SC-100-INFO**, Information for the Plaintiff, to know your rights. You can get form SC-100-INFO at any courthouse or county law library, or go to courts.ca.gov/rules-forms/find-your-court-forms.
- **Fill out pages 2, 3, and 4 of this form**. Make copies of all the pages of this form and any attachments—one for each party named in this case and an extra copy for yourself. Take or mail the original and the copies to the court clerk's office and pay the filing fee. The clerk will write the date of your trial in the box above. Your court may allow electronic filing. Check your local court website for information: courts.ca.gov/find-my-court.htm.
- You must have someone at least 18—not you or anyone else listed in this case—give each defendant a court-stamped copy of all pages of this form and any pages this form tells you to attach. There are special rules for "serving," or delivering, this form to public entities, associations, and some businesses. See forms SC-104, SC-104B, and SC-104C.
- **Go to court on your trial date listed above.** Bring witnesses, receipts, and any evidence you need to prove your case.

j doe

Plaintiff (list names):

Case Number:

j doe (555) 555-5555

1 The plaintiff (the person, business, or public entity that is suing) is:

3020 BRIDGEWAY Sausalito CA 94965

Name: _____ Phone: _____

Street address: _____ Street _____ City _____ State _____ Zip

paul@thoxie.com

Mailing address (if different): _____ Street _____ City _____ State _____ Zip

Email address (if available): _____

If more than one plaintiff, list next plaintiff here:

Name: _____ Phone: _____

Street address: _____ Street _____ City _____ State _____ Zip

Mailing address (if different): _____ Street _____ City _____ State _____ Zip

Email address (if available): _____

☐ Check here if more than two plaintiffs and attach form SC-100A.

☐ Check here if either plaintiff listed above is doing business under a fictitious name and attach form SC-103.

acme auto (650) 666-6666

☐ Check here if any plaintiff is a "licensee" or "deferred deposit originator" (payday lender) under Financial Code sections 23000 et seq.

1 main marin CA 94965

2 The defendant (the person, business, or public entity being sued) is:

Name: _____ Phone: _____

Street address: _____ Street _____ City _____ State _____ Zip

joe cheatin

Mailing address (if different): _____ Street _____ City _____ State _____ Zip

1 main marin CA 94965

If the defendant is a corporation, limited liability company, or public entity, list the person or agent authorized for service of process here:

Name: _____ Job title, if known: _____

Address: _____ Street _____ City _____ State _____ Zip

1,591.98

☐ Check here if your case is against more than one defendant and attach form SC-100A.

☐ Check here if any defendant is on active military duty and write defendant's name here:

3 The plaintiff claims the defendant owes $ _____. (Explain below and on next page.)

a. Why does the defendant owe the plaintiff money?

On or about 04/01/2026, I took my 2021 Mercedes to acme auto to diagnose and repair an engine noise. acme auto told me the noise was "lifter noise" and represented that replacing the lifters and bearings would fix it. I agreed to and paid for the work based on acme auto's written invoice. acme auto kept the car for a few days and returned it to me on 04/01/2026. As soon as I drove away, ~~the same engine noise was~~ still present with no improvement. With my mechanic friend (Jojo) and reported that the noise was unchanged. I asked

j doe

Plaintiff (list names):

04/01/2026

Case Number:

04/01/2026 04/01/2026

3 b. When did this happen? (Date): _____

I have no specific date, give the time period. If no specific date, give the time period: Date started: _____ Through: _____

c. How did you calculate the money owed to you? (Do not include court costs or fees for service.)

_____

_____

_____

_____

× ☐ Check here if you need more space. Attach one sheet of paper or form MC-031 and write "SC-100, Item 3" at the top.

4 **You must ask the defendant (in person, in writing, or by phone) to pay you before you sue. If your claim is for possession of property, you must ask the defendant to give you the property. Have you done this?**

☐ Yes ☐ No If no, explain why not:

_____

_____

_____

_____

5 **Why are you filing your claim at this courthouse?**

This courthouse covers the area (check the one that applies):

a. ☐ (1) Where the defendant lives or does business.
(2) Where the plaintiff's property was damaged.
(3) Where the plaintiff was injured.
(4) Where a contract (written or spoken) was made, signed, performed, or broken by the defendant or where the defendant lived or did business when the defendant made the contract.

b. ☐ Where the buyer or lessee signed the contract, lives now, or lived when the contract was made, if this claim, is about an offer or contract for personal, family, or household goods, services, or loans. (Code Civ. Proc., § 395(b).)

c. ☐ Where the buyer signed the contract, lives now, or lived when the contract was made, if this claim is about a retail installment contract (like a credit card). (Civ. Code, § 1812.10.)

d. ☐ Where the buyer signed the contract, lives now, or lived when the contract was made, or where the vehicle is permanently garaged, if this claim is about a vehicle finance sale. (Civ. Code, § 2984.4.)

e. ☐ Other (specify):

_____

6 **List the zip code of the place checked in 5 above** (if you know): _____

7 **Is your claim about an attorney-client fee dispute?** ☐ Yes ☐ No

If yes, and if you have had arbitration, fill out form SC-101, attach it to this form, and check here: ☐

8 **Are you suing a public entity?** ☐ Yes ☐ No

If yes, you must file a written claim with the entity first. ☐ A claim was filed on (date): _____

If the public entity denies your claim or does not answer within the time allowed by law, you can file this form.

j doe

Plaintiff (list names):

Case Number:

9 **Have you filed more than 12 other small claims within the last 12 months in California?**
☐ Yes ☐ No If yes, the filing fee for this case will be higher.

10 **Is your claim for more than $2,500?** ☐ Yes ☐ No
If you answer yes, you also confirm that you have not filed, and you understand that you may not file, more than two small claims cases for more than $2,500 in California during this calendar year.

11 **I understand that by filing a claim in small claims court, I have no right to appeal this claim.**

04/10/2026

j doe

I declare under penalty of perjury under the laws of the State of California that the information above and on any attachments to this form is true and correct.

Date: _____

_____ ▶ _____
Plaintiff types or prints name here — Plaintiff signs here

Date: _____

_____ ▶ _____
Second plaintiff types or prints name here — Second plaintiff signs here

Requests for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the trial. For these and other accommodations, contact the clerk's office for form MC-410, Disability Accommodation Request. (Civ. Code, § 54.8.)